

The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disabilities Rules, 2000

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The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disabilities Rules, 2000

UNION OF INDIA

India

The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disabilities Rules, 2000

Rule

THE-NATIONAL-TRUST-FOR-WELFARE-OF-PERSONS-WITH-AUTISM-CEREBRAL-PALSY-MENTAL-RETARDATION-AND-MULTIPLE-DISABILITIES-RULES-2000 of 2000

Published on 26 July 2000

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[Note: The original publication document is not available and this content could not be verified.]

The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disabilities Rules, 2000

Published vide Notification G.S.R. 639(E), dated 26.7.2000, published in the Gazette of India, Extraordinary, Section 3(i), dated 27.7.2000.

18.

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G.S.R. 639(E), dated 26.7.2000. - In exercise of the powers conferred by section 34 of the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 (44 of 1999

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Rules, 2000.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 (44 of 1999

);

(b)

"Form" means the form annexed to these rules;

(c)

"State level agency" means any State authority or committee constituted by the Board under section 13 of the Act;

(d)

"year" means the financial year commencing from the 1st day of April and ending on the 31st day of March following;

(e)

all other words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Procedure for election of Members.

(1)

The Central Government shall make the initial appointment by nominating nine persons as Members on the Board, from amongst the registered organisations out of which three Members each shall be from voluntary organisations, association of parents of persons with autism, cerebral palsy, mental retardation and multiple disability and from association of persons with disability for a term of three years.

(2)

The Board shall, three months prior to the expiry of the term of office of the nine Members representing the registered organisations, invite nominations from amongst the organisations registered with it under section 12 of the Act.

(3)

The vacancies caused on completion of the term of office of these nine Members shall be distributed amongst the registered organisations with three Members each from (a) voluntary organisations, (b) association of parents of persons with autism, cerebral palsy, mental retardation and multiple disability, and (c) association of persons with disability, in such manner that amongst three voluntary organisations under clause (a), one each shall be working in the area of mental retardation, in the area of autism and in the area of cerebral palsy; from amongst three association of parents of persons with disability under clause (b), one each shall be from the area of mental retardation, autism and multiple disabilities; and from amongst three representatives of associations of persons with disabilities under clause (c), one shall be from the area of cerebral palsy and two from the area of multiple disabilities.

(4)

Where the number of nominations received by the Board is more than the number of vacancies, the Board shall hold elections by postal ballot for the vacancies.

(5)

Where nomination is not received for any category representing registered organisation as specified in sub-rule (2), the Board may make appointment by nomination to the given vacancy.

Conditions of services of the Chairperson and Members

4.

[Educational qualification and experience for Chairperson of Board.

[Substituted by Notification No. G.S.R. 410(E), dated 27.4.2018 (w.e.f. 27.7.2000)]

- Any person for being appointed as the Chairperson of the Board shall possess the following educational and other qualifications and experience, namely:-

(i)

Master's degree from a recognized university:

Provided that preference shall be given to a person having-

(a)

a postgraduate degree from a recognised University or Institute in one or more area of disability or community based disability rehabilitation, namely, autism, cerebral palsy, mental retardation, multiple disability or any other equivalent qualification in these fields which is recognized by the Rehabilitation Council of India and registered as a personnel or professional with the Rehabilitation Council of India; or

(b)

a postgraduate degree from a recognised University or Institute in any subject with diploma or degree in one or more area of disability or community based disability rehabilitation, namely, autism, cerebral palsy, mental retardation, multiple disability or any other equivalent qualification in these fields which is recognized by the Rehabilitation Council of India and registered as a personnel or professional with the Rehabilitation Council of India; and

(c)

his research papers published in any reputed professional journals; and

(ii)

minimum of ten years experience in the disability sector out of which not less than seven years shall be in autism or cerebral palsy or mental retardation or multiple disabilities; and

(iii)

administrative experience of not less than three years as Chief Executive Officer or Chairperson or President or General Secretary of any Non-Governmental Organisation which has been serving at least for ten years in the areas of autism, cerebral palsy, mental retardation or multiple disabilities:

Provided that the age of such person shall not be more than sixty-two years as on the closing date of receipt of applications by the Central Government.]

[4A. Procedure for selection of Chairperson. - The Chairperson shall be appointed by the Central Government on the recommendation of a search-cum-selection committee consisting of the following persons, namely:-

(i)

A senior distinguished academician in the relevant field to be nominated by the Minister Social Justice and Empowerment Chairman;

(ii)

Secretary, Department of Empowerment of Persons with Disabilities; Member;

(iii)

Chief Commissioner for Persons with Disabilities Member;

(iv)

Two experts of eminence amongst the Managing Directors or Chairperson of Non Governmental Organisations working in the field of Autism, Cerebral Palsy, Mental Retardation, Multiple Disabilities, of whom one Member will be a parent or sibling Members.]

[4B. Salary of Chairperson. - The salary of the Chairperson shall be equivalent to the basic pay of the Secretary to the Government of India and dearness allowance and city compensatory allowance as admissible:

Provided that where the Chairperson is a retired person from the Central Government or a State Government or Union Territory Administration or Semi-Government body or public sector undertaking or a recognised research institution or any other autonomous or statutory body, the salary payable together with the pension or pensionary value of the

terminable benefits or both received by him shall not exceed the basic pay of Secretary to the Government of India.]
[Inserted by Notification No. G.S.R. 71(E), dated 4.2.2015 (w.e.f. 27.7.2000)]

5.

[Daily allowance]

[Substituted by G.S.R. 201(E), dated 8.3.2002, for " dearness allowance" (w.e.f. 8.3.2002).]
and the travelling allowance.

(1)

The Chairperson shall be entitled to [Daily allowance]

[Substituted by G.S.R. 201(E), dated 8.3.2002, for " dearness allowance" (w.e.f. 8.3.2002).]

, city compensatory allowance, travelling allowance as per rules applicable to the Secretary to the Government of India.

(2)

The non-official Members shall be eligible for receiving sitting fee of rupees five hundred for each day of the meeting of the Board and they shall also be paid travelling allowances as per the rules of the Central Government for attending the Board meetings.

6.

Powers and duties of the Chairperson.

(1)

The Chairperson shall be responsible for calling and presiding over all the meetings of the Board.

(2)

The Chairperson shall move the Board to take into consideration his views in regard to any matter which is required to be considered by it, or any matter required by the Central Government to be considered by the Board.

(3)

The Chairperson shall be responsible for the proper functioning of the Trust including Local Level Committees and ensure implementation of the policies and programmes of the Trust.

(4)

The Chairperson may give directions to the Chief Executive Officer for implementation of the decision taken by the Board.

Rules of procedure for transaction of business at the meeting of the Board

7.

Membership roll.

(1)

The Member-Secretary shall keep a record of names of the Members and their addresses.

(2)

If a Member changes his address, he shall notify the new address to the Member-Secretary, who shall thereupon enter his new address, in the official records, and if he fails to notify his new address, the address as in the official records shall for all purposes be treated as his correct address.

8.

Notice of meetings.

(1)

The meetings of the Board shall ordinarily be held at the Trust headquarters on such dates as may be fixed by the Chairperson.

(2)

The Chairperson shall upon the written request of not less than five Members of the Board, call a special meeting of the Board.

(3)

Fifteen clear days' notice of an ordinary meeting and five clear days' notice of special meeting specifying the time and the place at which such meeting is to be held and the business to be transacted thereat, shall be given by the Member-Secretary to the Members.

(4)

The notice of a meeting may be given to the Members by delivering the same by messenger or sending it by registered post to his last known place of residence or business in such other manner as the Chairperson may, in the

circumstances of the case, thinks fit or by electronic mail.

(5)

No Member shall be entitled to bring forward for the consideration of the meeting any matter of which he has not given ten clear days' notice to the Member-Secretary, unless the Chairperson in his discretion, permits him to do so.

(6)

The Board may adjourn its meetings from day to day or to any particular day.

(7)

Where a meeting of the Board is adjourned from day to day, notice of such adjourned meeting shall be given to the Members available at the place where the meeting was adjourned by a messenger and it shall not be necessary to give notice of the adjourned meeting to other Members.

(8)

Where a meeting of the Board is adjourned not from day to day but from the day on which the meeting is to be held to another date, notice of such meeting shall be given to all the Members as provided in sub-rule (4) of this rule.

9.

Presiding Officer.

- The Chairperson shall preside at every meeting of the Board and in his absence, the Members present shall elect one of the Members to preside over the meeting.

10.

[Quorum.

[Substituted by G.S.R. 478(E), dated 15.7.2005.]

(1)

One-third of the total Members shall form the quorum for any meeting.

(2)

If a meeting of the Board cannot be held for want of quorum, then, the meeting shall automatically stand adjourned till the same day in the next week, at the same time and place, or if that day is a public holiday, till the next succeeding date which is not public holiday, at the same time and place.

(3)

Notice of the adjourned meeting shall be given to all the Members.]

[Inserted by Notification No. G.S.R. 71(E), dated 4.2.2015 (w.e.f. 27.7.2000)]

11.

Minutes.

(1)

The record of the names of the Members who attend the meeting and of the proceedings shall be kept in a book to be maintained for that purpose by the Member-Secretary.

(2)

The minutes of the meeting shall be circulated to all concerned.

(3)

The minutes of the previous meeting shall be read at the beginning of every succeeding meeting, and shall be confirmed and signed by the presiding officer at such meeting.

(4)

The proceedings shall be open to inspection by any Member at the office of the Member-Secretary, during office hours.

12.

Maintaining order at meeting.

- The presiding officer shall maintain order at the meeting.

13.

Business to be transacted at a meeting.

(1)

Except with the permission of the presiding officer, no business which is not entered in the agenda or of which notice has not been given by a Member in advance under sub-rule (3) of rule 8, shall be transacted at the meeting.

(2)

At any meeting business shall be transacted in the order in which it is entered in the agenda, unless otherwise resolved

in the meeting with the permission of the presiding officer.

(3)

Either at the beginning of the meeting or after the conclusion of the debate on a motion during the meeting, the presiding officer or a Member may suggest a change in the order of business as entered in the agenda and if the Chairperson agrees, such a change shall take place.

14.

Decision by majority.

- All questions considered at a meeting shall be decided by a majority of votes of the Members present and voting and in the event of equality of votes, the Chairperson or in this absence, the Member presiding at the meeting, as the case may be, shall have a second or casting vote.

15.

Appointment, powers and duties of the Chief Executive Officer.

(1)

The appointment to the post of Chief Executive Officer shall be made through the Central Staffing Scheme of the Central Government:

Provided that experience in the field of disability, rehabilitation, administrative capability and any other such conditions as the Central Government may consider appropriate shall be kept in view.

(2)

The Chief Executive Officer shall be of the rank of Joint Secretary to the Central Government and shall draw the salary and avail benefits availed by the Joint Secretary to the Central Government.

(3)

The term of office of the Chief Executive Officer shall be for a period of three years or his superannuation at the age of 60 years, whichever is earlier.

(4)

Subject to the general control and directions of the Board, the Chief Executive Officer shall exercise powers of the Head of Department.

(5)

The Chief Executive Officer shall be in-charge of the management of the Trust and exercise such powers in respect of the affairs of the Trust, as may be delegated to him by the Chairperson from time to time.

(6)

The Chief Executive Officer shall be responsible for the administrative control and management of the office and shall perform such other duties as may be directed by the Board.

(7)

The Chief Executive Officer shall be responsible for maintaining proper accounts of the Trust.

(8)

All contracts shall be executed by the Chief Executive Officer in consultation with the Board and as per the regulations made by the Board from time to time.

(9)

The Chief Executive Officer as the Member-Secretary of the Board shall be responsible for maintaining all records pertaining to the meetings of the Board and business arising thereof.

16.

Application for guardianship.

(1)

The application by a parent, relative or registered organisation for appointment of guardian for a person with disability shall be made to the Local Level Committee in Form A.

(2)

The confirmation of appointment of guardian on such application shall be made in Form B.

(3)

A quarterly report in the prescribed format shall be given by the Local Level Committee to the Board or to the State level agency authorised by the Board giving particulars of the applications received and orders passed thereon.

17.

Procedure for removal of guardian.

(1)

(i)

The Local Level Committee upon receiving an application for removal of a guardian from a parent or a relative of a person with disability or a registered organisation on the grounds specified in clauses (a) and (b) of sub-section (1) of section 17 of the Act, shall appoint a team of investigators consisting not less than three persons.

(ii)

The team shall consist of one representative of parent organization, one representative of the association for the disabled and one Government official associated with disability not below the rank of Assistant Director.

(iii)

While taking a decision on the appointment of guardian, the Local Level Committee shall ensure that the person whose name has been suggested for appointment as guardian is-

(a)

a citizen of India;

(b)

is not of unsound mind or is currently undergoing treatment for mental illness;

(c)

does not have a history of criminal conviction;

(d)

is not a destitute and dependent on others for his own living; and

(e)

has not been declared insolvent or bankrupt.

(iv)

In case of an institution or organisation being considered by the Local Level Committee for appointment as a guardian, the following guidelines shall be followed:-

(a)

the institution should be recognised by the State or the Central Government;

(b)

the institution should have a minimum of 2 years' experience in offering disability rehabilitation services including running residential facilities or hostel to the respective category of persons with disability;

(c)

the residential facility or hostel for persons with disabilities shall maintain minimum standards in terms of space, staff, furniture, rehabilitation and medical facilities as specified by the Board.

(v)

The team of investigators while investigating a complaint for assessing the abuse or neglect of a person with disability shall follow the guidelines specified by the Board.

(vi)

The following acts of commission or omission shall constitute abuse or neglect on the part of the guardian, namely:-

(a)

solitary confinement of person with disability in a room for longer period of time;

(b)

chaining of the person with disability;

(c)

beating or treating a person with disability resulting in bruises, skin or tissue damage (not due to his injurious behaviour indulged by the persons with disabilities);

(d)

sexual abuse;

(e)

long deprivation of physical needs such as food, water and clothing;

(f)

no provision or non-compliance of rehabilitation or training programmes as specified by experts in the field of disability

rehabilitation;

(g)

misappropriation or misutilisation of the property of the person with disability; and

(h)

lack of facilities or no provision of trained or adequate staff for meeting the training and management needs of the persons with disabilities.

(2)

The team of investigators shall submit their report within a period of ten days.

(3)

Upon receiving the report of the investigation team, the Local Level Committee shall take the final decision within the period of ten days on the removal of the guardian against whom the complaint has been received after giving the said guardian an opportunity of being heard.

(4)

The Local Level Committee shall record in writing its reasons for removal of the guardian or rejection of the application.

18. Form in which budget of the Trust shall be forwarded to the Central Government.

(1)

The Chief Executive Officer of the Trust shall prepare the budget estimates for the next financial year and submit the same to the Board by the 31st July.

(2)

The Board shall approve the budget estimates in its annual meeting by the 20th September.

(3)

The budget estimates shall be revised by the Chief Executive Officer keeping in view the observations of the Board.

(4)

The duly approved budget estimates will be submitted by the Chief Executive Officer to the Central Government by 30th September of each year.

19.

Maintenance of fund, operation of accounts and preparation of annual statement of accounts.

(1)

The funds of the Trust shall be deposited in a nationalised bank and operated by any two of the three signatories nominated by the Board, one of the three being the Chief Executive Officer.

(2)

The Trust shall maintain proper accounts and other relevant records and prepare the annual statement of accounts including the statement of income and expenditure, receipt and payments, and the balance sheet.

(3)

The accounts of the Trust shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenses incurred in connection with such audit shall be payable by the Board to the Comptroller and Auditor-General of India.

(4)

The Comptroller and Auditor-General of India and any other person appointed by him in connection with the audit of the accounts of the Trust shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of Government accounts and in particular, shall have the right to demand the production of books of account, connected vouchers and other documents and papers and to inspect the offices of the Trust.

(5)

The accounts of the Trust as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf, together with the audit report thereon, shall be forwarded by the 31st December every year to the Central Government, and that Government shall cause the same to be laid before each House of Parliament.

20.

Appropriation and re-appropriation.

- The Chief Executive Officer with the approval of the Board shall have the power to appropriate or re-appropriate for valid reasons the funds from one primary or secondary unit to another and to have the same ratified by the Board in its

next meeting.

21.

Investments.

(1)

The funds of the Trust may be invested in short or long term deposits to yield better returns if feasible after keeping sufficient balance at the disposal of Trust or in such manner as the Board may authorise.

(2)

The Chief Executive Officer shall maintain a register of securities held by the Trust.

(3)

All investments of the funds of the Trust shall be made in the name of the Trust and all purchases, sales or alternations of such investment shall be effected and all contracts, transfer deeds or other documents necessary for purchasing, selling or altering the investments of the Trust shall be executed by the Chief Executive Officer after approval of the Board.

(4)

The safe custody of the receipts, securities shall remain in the personal charge of the Chief Executive Officer and shall be verified once in six months with the register of securities in his custody and a certificate of such verification shall be recorded in the register after every verification.

(5)

The Chief Executive Officer after approval by the Board shall sign and execute all agreements, contracts, transfer deeds of conveyance and other documents in connection with the affairs of the Trust with consultation and advice of the legal advisers appointed by the Trust.

(6)

The Trust shall invest and deal with funds and moneys of the Trust and shall have the right-

(i)

to issue appeals and applications of money and funds in furtherance of the said objectives and to raise or collect funds by gifts, donations, subscriptions or otherwise of cash and securities and any movable property;

(ii)

to acquire, purchase or otherwise own or take on lease or hire temporarily or permanently buy any movable or immovable property necessary or convenient for the furtherance of the objects of the Trust;

(iii)

to borrow and raise money with or without security or on the security of mortgage charge or on the security hypothecation or pledge of all or any of the movable or immovable properties belonging to the Trust or in any other manner whatsoever, provided that prior approval of Central Government in writing has been obtained in that behalf;

(iv)

to sell, assign, mortgage, lease, exchange and otherwise transfer or dispose of all or any property movable or immovable of the Trust for the furtherance of the objects of the Trust provided prior approval of the Central Government in writing is obtained for the transfer of the immovable property;

(v)

to enter into any agreement with any Government or authority, municipal, local or otherwise to obtain from such Government or authority any rights, privileges, concessions, fiduciary or otherwise that the Trust may deem desirable to obtain and carry out, exercise and comply with such arrangements and rights, privileges and concessions;

(vi)

to draw, make, accept, endorse, discount, execute, sign, issue and otherwise deal with cheques, hundis, drafts, certificates, receipts, Government securities, promissory notes, bills of exchange or other instruments and securities whether negotiable or transferable or not;

(vii)

to build, construct, maintain, repair, alter, improve or develop or furnish any buildings or works necessary or convenient for the purpose of the Trust;

(viii)

to undertake and accept management of any endowment or trust fund or donation to further the objects of the Trust but so nevertheless that this shall exclude immovable property;

(ix)

to appoint or employ temporarily or permanently any person or persons that may be required for the purposes of the Trust and to pay them in return for services rendered to the society, salaries, wages, honorarium, fees, gratuities, provident funds and pensions provided that prior approval of the Central Government is obtained in this behalf;

(x)

to establish a provident fund and other benefits for employees of the Trust provided that prior approval of the Central Government is obtained in this behalf;

(xi)

to institute, offer, or grant, prizes, awards, scholarships, fellowships and stipend in furtherance of the objects of the Trust;

(xii)

to receive and accept grant, donations and other contributions but not immovable property.

(7)

In case of movable property bequeathed by any person for the benefit of persons with disability under clause (b) of sub-section (1) of section 11 of the Act, the Board shall determine the differential treatment to be provided to the persons covered under the Trust on the basis of the bequests, donations and the agreement made in this regard with the person bequeathing the property.

22.

Disposal of property.

- The Chief Executive Officer with the approval of the Board shall form a condemnation board to dispose of the non-expendable and other articles and to write off all unserviceable and condemned articles.

23.

Drawl of funds.

(1)

The Chief Executive Officer shall keep watch over expenditure and accord sanction to the payments within the grants sanctioned and not by exceeding the powers delegated to him by the Trust.

(2)

The Chief Executive Officer shall be assisted by officers authorised under the financial regulations made in this behalf by the Trust.

(3)

The funds shall be drawn from the Bank by cheque to meet the expenditure.

(4)

The Cheque Books shall remain in the personal custody of the Chief Executive Officer or any other officer as may be authorised by the Chief Executive Officer on his behalf.

(5)

The Chief Executive Officer shall be assisted in respect of receipts and expenditure by the Accounts Officer or Accountant, who shall maintain pro forma accounts and submit all claims in respect of pay and allowances, travelling allowances and contingent bills in the specified forms and shall be countersigned by the Chief Executive Officer or by the officer authorised in this behalf before those are passed for payment by means of demand drafts or cheques or cash, as the case may be.

(6)

The Accounts Officer or Accountant shall apply a check of a nature of a pre-audit to all payments from the funds of the Trust.

24.

Hiring of office accommodation

n.-(1) The Chief Executive Officer shall have the powers to acquire hired accommodation for office premises with the approval of the Board, whenever necessary at the rates not exceeding those specified by the Central Government for similar purposes and in the absence of such specified rates with the approval of the Central Government.

(2)

The Chairperson shall, with the prior approval of the Central Government, have the powers to hire or purchase the residential accommodation for the staff of the Trust in case the alternative arrangements are not made from the Central

pool of accommodation.

(3)

[In the event of the accommodation for the Chairperson or the staff of the Trust not being hired, purchased or alternative arrangements made, they may be paid house rent allowance as admissible to the officers and servants holding posts of corresponding scale of pay under the Central Government.]

[Inserted by G.S.R. 201(E), dated 8.3.2002 (w.e.f. 8.3.2002).]

25.

Maintenance of registers.

- The following books and registers shall be maintained by the Trust, namely:-

(1)

Register of Grants;

(2)

Register of Assets;

(3)

Register of outstanding dues recoverable from parties other than employees of the Trust;

(4)

Register of Loans and Advances given to employees with recovery position;

(5)

Register of Rents;

(6)

Register of Cheque Books;

(7)

Register of Receipt Books;

(8)

Register of sanctioned posts with authority of sanction;

(9)

General provident fund accounts, Ledger and Balance Sheets;

(10)

Service Books;

(11)

Register of Selection Committee's proceedings;

(12)

Register of Library Books;

(13)

Acquittance rolls and register of periodical increments;

(14)

Cash Books and Imprest Cash Books;

(15)

Bank Reconciliation Register (to be maintained with the Cash Book);

(16)

Ledger for control of expenditure;

(17)

Travelling Allowance, Dearness Allowance Register;

(18)

Pay Bill Register;

(19)

Contingent Bill Register;

(20)

Fuel Accounts Register;

(21)

Stamp Account Register;

(22)

Stock Register;

(23)

Stationery Register;

(24)

Bill Control Register;

(25)

Register of Securities;

(26)

Miscellaneous Expenditure Register; and

(27)

Register of beneficiaries with photographs.

26.

Preparation and submission of annual report to the Central Government.

(1)

The Chief Executive Officer as soon as possible after the end of the financial year but not later than the 30th day of September in the next financial year ensuing, prepare and submit to the Central Government an annual report giving complete accounts of the activities of the Trust during the said financial year.

(2)

In particular, the annual report referred to in sub-rule (1) shall contain information in respect of each of the following matters, namely:-

(a)

names of Members, officers, staff of the Trust and a chart showing the organisational set up;

(b)

highlight performance of the Trust with respect of each of the activities carried out for furtherance of the objects of the Trust;

(c)

progress made in implementation of various programmes undertaken by the Trust including the work of local level committees;

(d)

any other matter deemed appropriate for inclusion by the Trust or specified by the Central Government from time to time.

27.

Miscellaneous.

(1)

The return covering property of the ward shall be submitted by the guardian within 6 months of his appointment as guardian in Form C.

(2)

The account of property and assets to be furnished by the guardian within a period of 3 months of the close of every financial year shall be made in Form D.

(3)

The application for registration of a voluntary organisation or the association of parents or the association of persons with disability shall be made in Form E.

(4)

Any organisation working in the field of autism, cerebral palsy, mental retardation, multiple disabilities and already registered under the Societies Registration Act, 1860 (21 of 1860), or section 25 of the Companies Act, 1956 (1 of 1956

), or as a Public Charitable Trust shall not require separate recognition.

(5)

The registration of such organisations shall be necessary with the Trust for availing benefits under the Trust and for seeking decision of the Board.

Form A

[See rule 16(1)]

Form Of Application To The Local Level Committee By A Patient, Relative Or A Registered Organisation For Appointment Of Guardian For A Person With Disability

Date:

From

.....

.....

To,

The Local Level Committee

Sir/Madam,

.....is a person with disability and requires protection of his person and property through a guardian. We hereby request thatbe appointed as guardian of the saidfor the protection of his person and property.

We furnish hereunder further details and request early decision :

1. Particulars of the person to be provided guardian

Name:

Age:

Nature of disability:

Address:

2. Particulars of the person proposed to be appointed as guardian

Name:

Age:

Relationship with the ward, if any:

Address:

We enclose herewith disability certificate of the saidobtained from

Yours faithfully

.....

Witnesses :

Authorised Signatory

1stWitness

Name :

Designation :

2ndWitness

Office stamp :

Consent of the person proposed to be appointed guardian

I hereby agree to be the guardian of the person and property of and shall discharge my obligations with due diligence.

.....

Signature:

Name:

Date:

Consent of the guardian, if any, to the aforesaid proposal

I hereby agree to the above proposal to appoint as the guardian of

.....

.....

Signature:

Name:

Date:

Form B

(See rule 16(2))

Form Of Confirmation Of Appointment Of Guardian On Application Made By (1) A Registered Organisation, Or (2) Parent Or Relative Of Person With Disability

The Local Level Committee situated athaving considered the application made byfor appointment of guardian for.....hereby confirms its decision as under :

1. Name of the ward:

2. Name of the guardian:

3. Obligations of the guardian:

(a)

maintenance and residential care:

(b)

management of immovable property:

(c)

management of movable property:

(d)

any others:

The guardian shall furnish property returns to this Committee as per Form C and Form D specified under these rules.

.....

Signature(s)

Place:

Date:

Stamp

Form C

[See rule 27(1)]

Form Of Return Covering Property Of The Ward To Be Submitted By The Guardian Within 6 Months Of His Appointment As Guardian

1. Name of the guardian:

2. Name of the ward:

3. Date of appointment of the guardian:

4. Inventory of immovable property of the ward received by the guardian (to be furnished item-wise):

(i)

Nature:

(ii)

Estimated market value:

(iii)

Location:

5. Inventory of the movable property of the ward received by the guardian (to be furnished item-wise):

(i)

Description:

(ii)

Value:

6. Pending liabilities of the ward:

(i)

Nature:

(ii)

Amount:

7. Pending claims receivable by the ward:

(i)

Nature:

(ii)

Amount:

I declare that the aforesaid information is true and accurate to the best of my knowledge, information and belief.

.....

Signature of the guardian

Place:

Date:

Witnesses:

1st.

Witness

2nd.

Witness

Form D

[See rule 27(2)]

Form Of Account Of The Property And Assets To Be Furnished By The Guardian Within A Period Of 3 Months Of The Close Of Every Financial Year

1. Name of the guardian:

2. Name of the ward:

3. Immovable property of the ward held by the guardian as on(to be furnished item-wise)

(i)

Nature:

(ii)

Estimated marker value:

(iii)

Location:

4. Receipts and payments statement for the period fromto
.....Payments.....Receipts.....

Head Amount Head Amount

5. Movable assets of the ward in the charge of the guardian on (to be furnished item-wise)

(i)

Nature:

(ii)

Amount:

6. Investments redeemed or alienated for consideration during the year ended

7. New investments made during the year ended (including renewals)

8. Increase/decrease in the value of movable assets of the ward during the year ended

9. Brief explanation for the variation vide 8 above :

I hereby declare that the aforesaid information is true and accurate to the best of my knowledge, information and belief.

.....

Signature of the guardian

Place:

Date:

Witnesses:

1st. Witness

2nd. Witness

Form E

[See rule 27(3)]

Form Of Application For Registration Of A Voluntary Organisation/association Of Parents/association Of Persons With Disability

1. Organisation :

Name:

Address (Office/Project):

Phone/Fax/Telex (Office):

(Project)

:

2. (i) Name of the Act under which registered :

(ii)

Registration No. and date of registration (Please attach a photocopy) :

3. Memorandum of Association and Bye-laws

(Please attach a photocopy):

4. Name, address, occupation and other particulars of the Members of the Board of Management/Governing Body:

5. Present activities of the organisation:

6. Present membership strength and categorisation :

List of documents to be attached--

(a)

A copy of the annual report for the previous year

(b)

Audited statement of accounts duly certified by Chartered Accountant for the last two years

(i)

Receipt and Payment Account (by Chartered Accountant) for the last two years

(ii)

Income and Expenditure Account (by Chartered Accountant) for the last two years

(iii)

Balance Sheet for the last two years (by Chartered Accountant)

(c)

Details of Staff employed :

(d)

Details of beneficiaries to be covered :

(e)

If hostel is maintained, then number of hostellers :

(f)

Other items, if any :

(g)

Whether located on its own/rented building (Necessary evidence to be attached).

.....

Signature of the Authorised Signatory

Name :

Designation :

Address :

Date :

Office Stamp :

Related AI tags, queries and research notes

Translation